
8:30 a.m. Law and Motion

BLY, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.

CASE NUMBER: 25CV-0209458

Tentative Ruling on Motion to Compel Depositions: Plaintiffs Laura Bly, Julie Dowell, and David Eatchell, individually and as successors-in-interest to the Estate of Bettie Eatchel seek an order compelling Defendants to provide dates certain for the depositions of 13 witnesses pursuant to a properly served Notice of Taking Videotaped Depositions and Request for Production of Documents, within 3 days of the Court's order granting this motion. Defendants have filed an untimely Opposition, which the Court exercises its discretion to consider.

Defendants do not dispute that deposition dates and last-known contact information for the 13 noticed deponents have not been provided. Defendants do not oppose entry of an order compelling that information. Defendants request the Court allow Defendants 30 days from the hearing (rather than 3 calendar days) within which to provide dates and contact information. Defendants request that the Court decline to impose any monetary sanctions as the briefing does not request them. Defendants also do not oppose Plaintiff's request that the compelled depositions occur within 30 days of the hearing on this matter.

The Motion is **GRANTED**. Defendants are ordered to provide dates certain for the 13 noticed depositions within 15 days of today's hearing. Objections have been waived. No sanctions are imposed. The depositions are to occur within the next 30 days, unless otherwise agreed by the parties. The proposed order will be modified accordingly.

IN RE COFFMAN

CASE NUMBER: 26PB-0033441

Tentative Ruling on Petition to Approve Minor Compromise: Amy Coffman seeks an order approving the compromise of claim on behalf of her minor son Emmett Cardenas Coffman. California Rules of Court, Rule 7.950 provides that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. The Court is prepared to find that the settlement is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner is required to appear. The Court will not require the appearance of the minor at today's hearing, as he is only five years old.

The Court will voir dire the Petitioner about the terms of the settlement and any other potential sources to increase the settlement amount such as an umbrella policy or other potential sources of insurance. The Court will also inquire as to whether the Petitioner sought independent legal advice. The Court will also inquire as to whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding